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CENTRAL CIVIL SERVICES (TEMPORARY SERVICE) RULES, 1965

Comprehensive Study Notes • Updated & Verified Edition

For Departmental Examinations — Inspector of Posts (IP) & PS Group 'B'

Establishment / Service Rules Paper

1. Introduction — What These Rules Are About

Every Government servant begins service somewhere on a spectrum that runs from purely temporary engagement at one end to a fully permanent (pensionable) post at the other. The Central Civil Services (Temporary Service) Rules, 1965 — commonly written as the "CCS (TS) Rules, 1965" — regulate the conditions of service of those Central Government civil servants who are at the temporary end of that spectrum: persons holding a civil post who do not yet hold a lien (or a suspended lien) on any permanent post.

These Rules were made by the President in exercise of the powers conferred by the proviso to Article 309 read with clause (5) of Article 148 of the Constitution, in supersession of the earlier CCS (Temporary Service) Rules, 1949. In plain terms, they answer four practical questions that arise for a temporary employee:

- **Who is covered** — and who is expressly left out (Rule 1).
- **How is temporary service terminated** — by either side, and with what notice (Rule 5), and what happens on medical unfitness (Rule 6).
- **What terminal benefit** a temporary servant gets on retirement, discharge or invalidation — the terminal gratuity (Rule 10).
- **What the family gets** if the employee dies in harness — family pension and death gratuity (Rule 10(2)).

⚠ **IMPORTANT NOTE**

These Rules are short — the operative provisions today are essentially **Rules 1, 2, 5, 6 and 10**. Several original rules dealing with the old concept of **"quasi-permanent service"** (Rules 3, 4, 7, 8, 9 and 11) now stand **deleted/omitted or have become obsolete** in practice. Section 4 of these notes explains this carefully, because the topic is a frequent source of confusion — and of examination questions.

STATUTORY UPDATE (Verified)

Currency of this edition. The bare 1965 Rules have not been substantively re-cast, but the law they cross-refer to has changed. Three present-day instruments must be read alongside them:

- **CCS (Pension) Rules, 2021** — notified vide GSR 868(E) dated 20.12.2021; these **replaced the CCS (Pension) Rules, 1972** and apply to employees appointed on or before 31.12.2003. The 2021 Rules do not change the quantum of pension/gratuity; they consolidate and give statutory status to executive instructions.
- **CCS (Implementation of National Pension System) Rules, 2021** — govern employees appointed **on or after 01.01.2004** (the NPS cohort).
- **CCS (Payment of Gratuity under National Pension System) Rules, 2021** — notified vide GSR 658(E) dated 23.09.2021; for the first time these provide retirement gratuity and death gratuity to NPS employees, at par with pension-scheme employees.

Gratuity ceiling. The maximum limit of Retirement Gratuity and Death Gratuity stands enhanced from ₹20 lakh to **₹25 lakh with effect from 01.01.2024**, consequent on Dearness Allowance crossing 50% — see DoP&PW O.M. No. 28/03/2024-P&PW(B)/Gratuity/9559 dated 30.05.2024. The monetary figure of "₹15,000" in the original 1965 text is therefore wholly obsolete for current settlements.

2. Preliminary — Title, Application and Definitions

Rule 1 — Short Title, Commencement and Application

(1) & (2) Title and commencement

These Rules may be called the Central Civil Services (Temporary Service) Rules, 1965. As to commencement, the bare text of Rule 1(2) reads simply "they shall come into force at once" — it carries no calendar date within the sub-rule itself. The actual date of commencement notified is 1st May, 1965 (as recorded in the DoPT compilation of the Rules).

> ⚠ **IMPORTANT NOTE**
>
> **On the commencement date.** Some printings of the Rules reproduce Rule 1(2) as "shall come into force **at once**", while the fuller official text (including the DoPT compilation) gives the date as "with effect from **1st May, 1965**." Both refer to the same event — the latter simply supplies the actual date behind "at once." For an examination answer, **1st May, 1965** is the date to quote.

(3) Who the Rules apply to

Subject to sub-rule (4), the Rules apply to all persons —

- **(i)** who hold a civil post, including all civilians paid from the Defence Services Estimates under the Government of India, and who are under the rule-making control of the President, **but who do not hold a lien or a suspended lien** on any post under the Government of India or any State Government; and
- **(ii)** who are employed temporarily in work-charged establishments and who have opted for pensionary benefits.

> ⚠ **IMPORTANT NOTE**
>
> **Accuracy note on sub-rule (3)(ii).** Some study materials reproduce an older formulation — "persons employed in temporary service in a separate cadre or as temporary additions to a cadre of permanent posts." The consolidated text of the Rules as maintained in standard legal databases reads sub-rule (3)(ii) as covering work-charged employees who have opted for pensionary benefits. The defining test for coverage in every version is the same: the person holds a civil post and **does not hold a lien / suspended lien** on a permanent post.

(4) Categories expressly excluded

Nothing in these Rules applies to —

Cl.	Category excluded from the CCS (TS) Rules, 1965
(a)	Railway servants.
(b)	Government servants not in whole-time employment.
(c)	Government servants engaged on contract.
(d)	Government servants paid out of contingencies.
(e)	Persons in extra-temporary establishments or in work-charged establishments (other than those employed temporarily who have opted for pensionary benefits).
(f)	Non-departmental telegraphists and telegraphmen employed in the Posts and Telegraphs Department.
(g)	Such other categories of employees as may be specified by the Central Government by notification in the Official Gazette.

⚠ IMPORTANT NOTE

Read with the Pension Rules. For pension, gratuity and family-pension consequences, application of these Rules dovetails with the **CCS (Pension) Rules, 2021** (for pre-2004 entrants) or the NPS Rules, 2021 (for post-2003 entrants). The 1965 Rules do not operate in isolation on those matters.

Rule 2 — Definitions

In these Rules, unless the context otherwise requires —

Term	Definition (current consolidated text)
"Appointing Authority"	In relation to a specified post, the authority declared as such under the **CCS (Classification, Control and Appeal) Rules, 1965**.
"Temporary service"	The service of a temporary Government servant in a temporary post, or officiating service in a permanent post, under the Government of India.
"Defence services"	Services under the Government of India in the Ministry of Defence and in the Defence Accounts Departments (under the Ministry of Finance), paid out of the Defence Services Estimates and not permanently subject to the Air Force Act 1950, the Army Act 1950 or the Navy Act 1957.

⚠ **IMPORTANT NOTE**

Correction — "Appointing Authority". Several circulating notes define Appointing Authority as "the authority empowered by the President to make appointments…" That is the spirit, but the **current rule text** ties the definition to the authority declared as Appointing Authority under the **CCS (CCA) Rules, 1965** — the precise, examinable wording.

On "Government service" and "Quasi-permanent service." Older versions of Rule 2 also defined "Government service" (including service under a former Part 'B' State) and "quasi-permanent service" (service declared quasi-permanent under Rule 3). With the deletion/obsolescence of the quasi-permanent scheme (see Section 4), these definitions are of **historical relevance only** and are no longer operative for current decision-making. They are retained in some printings purely for reference to legacy cases.

Term	Definition (current consolidated text)

EXAM POINT

Lien is the linchpin. The single most tested idea in Rule 1–2 is that a temporary servant is one who holds a civil post but **has no lien (or suspended lien)** on a permanent post. The moment a person acquires a lien on a permanent post, he steps outside the temporary category.

Exclusions to memorise (mnemonic). Railways • Not whole-time • Contract • Contingencies • Extra-temporary/work-charged • Non-departmental telegraphists/telegraphmen • Notified categories. (“R-N-C-C-E-N-N”.)

3. Termination of Temporary Service (Rules 5 & 6)

Rule 5 — Termination of Temporary Service

(1)(a) & (b) The one-month notice rule

The services of a temporary Government servant who is not in quasi-permanent service are liable to termination at any time by a notice in writing given either by the Government servant to the Appointing Authority, or by the Appointing Authority to the Government servant. The period of such notice is one month.

⚠ IMPORTANT NOTE

Don't drop the qualifier. The operative words "**who is not in quasi-permanent service**" appear in Rule 5(1)(a) itself. Notes that omit this phrase mis-state the rule. The reciprocal right is symmetrical — **either side** may terminate on one month's notice.

Proviso — termination forthwith with pay in lieu of notice

The service of such a Government servant may be terminated forthwith. On such termination the Government servant is entitled to claim a sum equivalent to his pay plus allowances for the notice period (or for the part by which the notice falls short of one month), at the rates he was drawing immediately before termination.

⚠ IMPORTANT NOTE

What "allowances" means here. For pay-in-lieu-of-notice, "pay plus allowances" is understood by administrative instructions to include the **Dearness Allowance** and **House Rent Allowance** admissible on the date of termination. This is an administrative clarification, not a figure in the bare rule.

Note to Rule 5(1) — mode of service of notice

The Appointing Authority must follow this procedure when serving notice:

(i) **(i)** The notice is delivered or tendered to the Government servant in person.

(ii) **(ii)** Where personal service is not practicable, it is served by registered post (acknowledgement due) at the address available with the Appointing Authority.

(iii) **(iii)** If the registered post is returned unserved, the notice is published in the Official Gazette; on such publication it is deemed to have been personally served on the date of publication.

(2)(a) Power to re-open the case

Where the Appointing Authority terminates the service (or service ends on expiry of notice or forthwith on payment of pay plus allowances), the Central Government, or an authority specified by it, or a Head of Department (if the Appointing Authority is subordinate to him) may, of its own motion or otherwise, re-open the case and after such enquiry as it deems fit —

- **(i)** confirm the action taken by the Appointing Authority;
- **(ii)** withdraw the notice;
- **(iii)** reinstate the Government servant in service; or
- **(iv)** make such other order as it may consider proper.

Proviso — except in special circumstances recorded in writing, no case may be re-opened after the expiry of three months — (i) from the date of notice, where notice is given; or (ii) from the date of termination of service, where no notice is given.

(2)(b) Contents of a reinstatement order

Where a Government servant is reinstated under sub-rule (2), the order of reinstatement must specify —

- **(i)** the amount or proportion of pay and allowances, if any, payable for the period of absence between termination and reinstatement; and
- **(ii)** whether that period is to be treated as a period spent on duty for any specified purpose.

EXAM POINT

Termination ≠ punishment. Termination under Rule 5(1) is **not** dismissal or removal as a penalty; it flows from the terms of temporary service. The Supreme Court has repeatedly held that where the right to terminate flows from the contract or the service rule, the motive behind it is irrelevant and **Article 311 is not attracted** — provided the order is not, in substance, a punishment casting a stigma. (This is the classic "motive vs. foundation" test of the termination case-law.)

Three numbers to remember. Notice period = **1 month**; outer limit to re-open a case = **3 months**; special circumstances to exceed it = **recorded in writing**.

Rule 6 — Termination on Account of Physical Unfitness

Notwithstanding anything in Rule 5, the services of a temporary Government servant may be terminated at any time without notice on his being declared physically unfit for continuance in service — by an authority who would have been competent to declare him permanently incapacitated for service had his appointment been permanent.

⚠ IMPORTANT NOTE

Key contrast with Rule 5. Rule 5 needs one month's notice (or pay in lieu). Rule 6 needs **no notice at all**, but only on a valid declaration of physical unfitness by the competent (medical) authority. The two routes serve different situations and should not be conflated.

4. The "Quasi-Permanent" Scheme — Now Obsolete (Rules 3, 4, 7, 8, 9, 11)

As originally framed, the 1965 Rules contained an intermediate status between purely temporary and permanent service, called quasi-permanent service. A temporary servant who satisfied prescribed conditions (broadly, continuous service of three years plus a declaration that he was likely to continue indefinitely) could be declared quasi-permanent, which gave him a measure of protection closer to that of a permanent employee. The relevant machinery sat in Rules 3, 4, 7, 8 and 9, with Rule 11 (and Rule 10(4)) as allied provisions.

Current status of these rules

Rule	Original subject	Position today
Rule 3	When a Government servant is deemed quasi-permanent.	No longer operative; the quasi-permanent declaration scheme is not used.
Rule 4	Declaration under Rule 3 to specify the posts.	No longer operative.
Rule 7	Termination of quasi-permanent service.	No longer operative.
Rule 8	(Provisions on quasi-permanent service.)	Shown as **[Deleted]** in the consolidated Rules.
Rule 9	Leave, allowances, etc. of a quasi-permanent servant.	No longer operative.
Rule 11	(Allied provision.)	Shown as **[Deleted]**.
Rule 10(4)	(Sub-rule of the gratuity rule.)	Shown as **Deleted**.

Rule	Original subject	Position today

STATUTORY UPDATE (Verified)

Why the scheme fell into disuse. The protection that quasi-permanency once gave has been overtaken by the modern policy on **confirmation**. Under the present dispensation, **confirmation is made only once in an employee's service — at the entry grade — and is de-linked from the availability of a permanent vacancy**. An employee who has satisfactorily completed probation (and any prescribed departmental examination/training) is confirmed; there is no continuing need for an intermediate "quasi-permanent" status. Consequently the quasi-permanent rules are treated as dead letter for current administration.

⚠ IMPORTANT NOTE

Honest flag on dates. Some study notes state that quasi-permanency was "abolished w.e.f. 01.01.1986" by the "CCS (Temporary Service) Amendment Rules, 1989." A specific gazette notification matching that exact description **could not be independently confirmed from primary sources** while preparing this edition. What **is** verifiable is that (a) the consolidated, in-force text of the Rules shows Rules 8 and 11 and Rule 10(4) as **Deleted**, and Rules 3, 4, 7 and 9 reduced to bare headings, and (b) the quasi-permanent scheme is **no longer operated** because of the once-only confirmation policy. Treat the precise abolition date/notification as **unverified**; rely on the operative position instead. Always cross-check against the latest DoPT compilation before quoting a date in an answer.

EXAM POINT

Safe way to answer. If asked about quasi-permanent service, state that it was an intermediate status under the original Rules 3, 4 and 7–9, that those provisions are now **deleted/obsolete**, and that the protection has been **subsumed by the once-only confirmation policy**. This is accurate without relying on a contested date.

5. Terminal Gratuity (Rule 10)

Rule 10 is the benefit core of these Rules. It provides a terminal gratuity to a temporary Government servant who retires on superannuation, is discharged, or is declared invalid for further service — and it routes long-serving temporary servants and the families of those who die in harness into the regular pension/gratuity framework.

> ⚠ **IMPORTANT NOTE**
>
> **Scope note (very important).** Rule 10 in its gratuity form applies to Government servants appointed **on or before 31.12.2003**. For those appointed **on or after 01.01.2004** (the NPS cohort), gratuity is now governed by the **CCS (Payment of Gratuity under NPS) Rules, 2021** — see the Statutory Update at the end of this section.

Rule 10(1) — Rates of terminal gratuity

Subject to sub-rule (1-B), a temporary Government servant who retires on superannuation, is discharged, or is declared invalid for further service is eligible for gratuity at the following rates (based on continuous service at the time of retirement, discharge or invalidment):

Length of continuous service	Rate of terminal gratuity (bare-rule text)
Below 5 years	Nil (no terminal gratuity).
5 years and above, but below 10 years	**One-half (½) of a month's pay** for each completed year of service.
10 years and above	**One month's pay** for each completed year of service, subject to a maximum of **15 months' pay or ₹15,000, whichever is less**.

Proviso to Rule 10(1) — the amount of terminal gratuity shall not be less than the matching Government contribution the servant would have received under a Contributory Provident Fund Scheme from the date of his continuous temporary service, subject to the condition that the matching contribution shall not exceed 8⅓ % of his pay.

> ⚠ **IMPORTANT NOTE**
>
> **Two corrections to common notes.** (1) The bare-rule ceiling is "**15 months' pay or ₹15,000, whichever is less**" — the ₹15,000 figure is part of the original text and is **now obsolete** in money terms (see Statutory Update). (2) The **CPF-matching proviso (8⅓ %)** is part of Rule 10(1) and is frequently omitted in circulating notes — it guarantees a floor for the gratuity.

Rule 10(1-A) — Compulsory retirement as a penalty

Where a temporary Government servant is compulsorily retired from service as a disciplinary measure, sub-rule (1) applies subject to the modification that the rate of gratuity in his case shall be not less than two-thirds of, but in no case exceeding, the rate specified in clause (a) or (b) of sub-rule (1), as applicable.

> ⚠ **IMPORTANT NOTE**
>
> **Correction.** This sub-rule is about a **penalty of compulsory retirement**, and it sets a **floor of two-thirds** (with the normal rate as the ceiling). Notes that describe it merely as the authority being free to "specify the amount not exceeding…" miss the two-thirds floor, which is the examinable point. (The parallel provision for the NPS cohort — Rule 30 of the Gratuity-under-NPS Rules, 2021 — likewise fixes a two-thirds floor.)

Rule 10(1-B) — Long service / VRS → pension route

Where a temporary Government servant retires on attaining the age of superannuation, or is declared permanently incapacitated by the appropriate medical authority, after rendering not less than 10 years' temporary service — or who seeks voluntary retirement by giving three months' notice in writing on completion of 20 years' service — then sub-rule (1) does not apply, and instead, in accordance with the CCS (Pension) Rules —

- **(i)** he is eligible for superannuation / invalid / retiring pension (as the case may be) and retirement gratuity; and
- **(ii)** in the event of his death after retirement, his family is eligible for family pension.

⚠ **IMPORTANT NOTE**

Pension Rules cross-reference updated. The bare text refers to the "CCS (Pension) Rules, 1972." For all current cases this means the **CCS (Pension) Rules, 2021**, which replaced the 1972 Rules (GSR 868(E) dated 20.12.2021) without altering the quantum of benefit.

Rule 10(2) — Death in service: family pension & death gratuity

In the event of death of a temporary Government servant while in service, his family is eligible for family pension and death gratuity at the same scale and under the same provisions as apply to permanent Central Civilian Government servants under the CCS (Pension) Rules — i.e. the CCS (Pension) Rules, 2021 for the pension-scheme cohort, or the CCS (Payment of Gratuity under NPS) Rules, 2021 / NPS framework for the post-2003 cohort.

Rule 10(3) — When no gratuity is admissible

No gratuity is admissible under this rule to a Government servant —

- **(a)** who resigns his post, or who is removed or dismissed from service as a disciplinary measure; or
- **(b)** who is re-employed after retirement on superannuation or retiring pension.

First proviso — a temporary Government servant who resigned to take up, with prior permission, an appointment under a Corporation or Company wholly or substantially owned or controlled by Government (or under a Government-controlled/financed body) is paid terminal gratuity at the sub-rule (1) rate for the service rendered under Government.

Second proviso — a temporary Government servant absorbed in a Central autonomous body with the permission of the parent department has an option to count the Government service for pension under the autonomous body (if it has a pension scheme), instead of drawing the terminal gratuity under the first proviso.

Explanation — for this sub-rule, a "Central autonomous body" means a body financed wholly or substantially from cess or Central Government grants (including a Central statutory body or Central University, but not a public undertaking under the Bureau of

Public Enterprises); "financed substantially" means more than 50% of expenditure is met by cess or Central Government grants.

> ⚠ **IMPORTANT NOTE**
>
> **Restoration of detail.** The two provisos and the Explanation to Rule 10(3) are routinely dropped in summary notes. They matter in practice for **resignation-to-PSU** and **absorption-in-autonomous-body** cases, and they are fair game in the examination.

Rule 10(5) & 10(6) — Bar on double benefit; mode of calculation

Sub-rule (5) — where gratuity under this rule is paid to (or in respect of) a Government servant who is not covered by the retirement-gratuity provision of the CCS (Pension) Rules, no other gratuity or pensionary benefit is payable. (This prevents double benefit.)

Sub-rule (6) — for the purpose of this rule —

- **(a)** gratuity is calculated on the pay the Government servant was receiving immediately before retirement, or on the date of death;
- **(b)** "Pay" means pay as defined in Fundamental Rule 9(21)(a)(i) — i.e. basic pay (plus Non-Practicing Allowance, where admissible to medical officers);
- **(c)** a period of extraordinary leave is counted for completed service on the same basis as for pension and retirement/death gratuity under the relevant rule of the CCS (Pension) Rules; and
- **(d)** an increment earned during the currency of earned leave (not exceeding 120 days, or during the first 120 days of a longer spell) expiring on the date of retirement — though not actually drawn — forms part of pay for calculating terminal/death gratuity.

> ⚠ **IMPORTANT NOTE**
>
> **"Pay" for gratuity.** Gratuity "pay" is **basic pay (FR 9(21)(a)(i))**, plus NPA where applicable. **Dearness Allowance is added to 'emoluments' for Retirement Gratuity and Death Gratuity** under the 7th CPC pension framework — so DA counts for those gratuities even though the original 1965 terminal-gratuity "pay" did not include DA. Stagnation increment is also treated as emoluments for gratuity under the NPS Gratuity Rules, 2021.

Statutory Update for Rule 10 — The Current Gratuity Regime

STATUTORY UPDATE (Verified)

1. **NPS employees (appointed on/after 01.01.2004).** Gratuity is governed by the **CCS (Payment of Gratuity under National Pension System) Rules, 2021**, notified vide **GSR 658(E) dated 23.09.2021**. For the first time, NPS-covered Central Government civil servants get Retirement Gratuity and Death Gratuity at par with pension-scheme employees. (Where an NPS employee dies/ is invalidated and had opted for benefits under the old pension rules, gratuity follows those rules.)

2. **Maximum gratuity ceiling — ₹25 lakh.** The maximum limit of Retirement Gratuity and Death Gratuity stands enhanced from ₹20 lakh to **₹25 lakh with effect from 01.01.2024**, following DA reaching 50%. See **DoP&PW O.M. No. 28/03/2024-P&PW(B)/Gratuity/9559 dated 30.05.2024** (read with Department of Expenditure O.M. dated 12.03.2024 on DA). The "₹15,000" figure in the bare 1965 Rule is therefore obsolete for any current settlement.

3. **Coverage clarification.** By DoP&PW O.M. dated 24.10.2025, the ₹25 lakh ceiling applies to Central Government **civil** employees covered by the CCS (Pension) Rules, 2021 or the CCS (Gratuity under NPS) Rules, 2021. Railways, Defence personnel, statutory/autonomous bodies and PSUs/Banks are governed by their own dispensations and are outside DoP&PW's purview.

4. **Pension Rules cross-reference.** Wherever Rule 10 says "CCS (Pension) Rules, 1972," read **CCS (Pension) Rules, 2021** (GSR 868(E) dated 20.12.2021) for current cases.

EXAM POINT

Quick recall — Rule 10 service slabs. Below 5 yrs → Nil; 5–<10 yrs → ½ month's pay per completed year; 10 yrs+ → 1 month's pay per completed year (old ceiling 15 months' pay / ₹15,000, whichever less — now superseded by the ₹25 lakh statutory ceiling).

Two floors to remember. CPF-matching floor in Rule 10(1) = **8⅓ %** of pay; penalty-compulsory-retirement floor in Rule 10(1-A) = **two-thirds** of the normal rate.

Date that decides the regime. 31.12.2003 / 01.01.2004 — the dividing line between the pension-scheme cohort (Pension Rules, 2021 + Rule 10) and the NPS cohort (Gratuity-under-NPS Rules, 2021).

6. Rule-at-a-Glance Summary

Rule	Subject	Status / Key Point
Rule 1	Short title, commencement, application	Operative. Covers civil-post holders with no lien on a permanent post; lists 7 excluded categories.
Rule 2	Definitions	Operative for "Appointing Authority", "temporary service", "defence services". Quasi-permanent / Government-service definitions now historical.
Rules 3, 4	Declaration of quasi-permanent status	Obsolete — quasi-permanent scheme no longer operated.
Rule 5	Termination of temporary service	Operative. 1 month's notice (either side) or pay in lieu; case re-openable within 3 months.
Rule 6	Termination on physical unfitness	Operative. No notice required on valid declaration of unfitness.
Rules 7, 8, 9	Quasi-permanent service provisions	Deleted / obsolete (Rule 8 shown "Deleted").
Rule 10	Terminal gratuity	Operative for pre-2004 entrants. Slabs: Nil / ½ month / 1 month per year. CPF floor 8⅓%. Penalty floor ⅔. Read with Pension Rules 2021 & ₹25 lakh ceiling.
Rule 10(4), Rule 11	Allied provisions	Deleted.

Which Regime Applies — By Date of Appointment

Date of appointment	Pension	Gratuity
On or before 31.12.2003	CCS (Pension) Rules, 2021 (replaced 1972 Rules).	Terminal gratuity under Rule 10, CCS (TS) Rules; retirement/death gratuity under CCS (Pension) Rules, 2021.
On or after 01.01.2004	CCS (Implementation of NPS) Rules, 2021 (NPS).	CCS (Payment of Gratuity under NPS) Rules, 2021 — GSR 658(E) dated 23.09.2021.

⚠ **IMPORTANT NOTE**

One ceiling, both regimes. The **₹25 lakh** maximum for Retirement Gratuity and Death Gratuity (w.e.f. 01.01.2024) applies under **both** the CCS (Pension) Rules, 2021 and the CCS (Gratuity under NPS) Rules, 2021.

8. Quick-Revision Capsule

- **Constitutional basis:** proviso to Art. 309 + Art. 148(5); supersedes the 1949 Rules. **Commenced 1st May, 1965** (Rule 1(2) text: "come into force at once").
- **Who is 'temporary':** holds a civil post; **no lien / suspended lien** on a permanent post.
- **Excluded (R-N-C-C-E-N-N):** Railways, Not-whole-time, Contract, Contingencies, Extra-temporary/work-charged, Non-departmental telegraphists/telegraphmen, Notified categories.
- **Termination (Rule 5):** 1 month's notice **either side**, or pay-plus-allowances in lieu; re-open within **3 months** (longer only if special circumstances recorded in writing).
- **Termination not a penalty:** Art. 311 not attracted if order flows from the rule and is not punitive in substance.
- **Physical unfitness (Rule 6):** termination **without notice** on competent declaration of unfitness.
- **Quasi-permanency:** intermediate status under original Rules 3/4/7–9; **now deleted/obsolete**; subsumed by once-only confirmation.
- **Terminal gratuity (Rule 10):** <5 yrs Nil • 5–<10 yrs ½ month/yr • 10 yrs+ 1 month/yr; CPF floor **8⅓%**; penalty floor **⅔**.
- **Gratuity 'pay':** basic pay (FR 9(21)(a)(i)) + NPA; DA added to emoluments for retirement/death gratuity under 7th CPC.
- **Death in service:** family pension + death gratuity per CCS (Pension) Rules, 2021 (or NPS framework).
- **Current numbers:** gratuity ceiling **₹25 lakh w.e.f. 01.01.2024**; regime split at **31.12.2003 / 01.01.2004**.

9. Primary Sources & Instruments Cited

Aspirants should always verify against the original instruments. The principal sources relied upon for this edition are:

1. **CCS (Temporary Service) Rules, 1965** — consolidated text (made under proviso to Art. 309 & Art. 148(5)); DoPT (acts/temporary-service-rules).
2. **CCS (Pension) Rules, 2021** — GSR 868(E) dated 20.12.2021 (Notification No. 38/3/2017-P&PW(A)); replaced CCS (Pension) Rules, 1972.
3. **CCS (Implementation of National Pension System) Rules, 2021** — DoP&PW; governs post-31.12.2003 entrants.
4. **CCS (Payment of Gratuity under NPS) Rules, 2021** — GSR 658(E) dated 23.09.2021 (F. No. 59/03/2019-P&PW(B)).
5. **DoP&PW O.M. No. 28/03/2024-P&PW(B)/Gratuity/9559 dated 30.05.2024** — gratuity ceiling enhanced to ₹25 lakh w.e.f. 01.01.2024 (read with DoE O.M. No. 1/1/2024-E-II(B) dated 12.03.2024 on DA at 50%).
6. **DoP&PW O.M. dated 24.10.2025** — clarification on applicability of the enhanced ₹25 lakh gratuity ceiling (civil employees under DoP&PW purview).

⚠ **IMPORTANT NOTE**

Verification standard. Statutory positions change. Before quoting a section number, date or figure in an answer or in further study material, re-check the **latest** DoPT / DoP&PW compilation and the Gazette. Where this edition could not confirm a claim from primary sources (notably the precise date/notification for the 'abolition' of quasi-permanency), that uncertainty has been flagged rather than papered over.

— End of Notes —

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